

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

-----X
NASIR MCMILLAN,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose and plaintiff resides

-against-

THE CITY OF NEW YORK, COLIN HIGGINS DET.
OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767,
OTHER NEW YORK CITY POLICE OFFICERS ON
ARREST #B17628485 WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-
V, AS IT PERTAINS TO THE ARREST OF JUNE 1,
2017 FOR AN INCIDENT THAT ALLEGEDLY
OCCURRED ON MAY 31, 2017 AND NO OTHER,

SUMMONS

Plaintiff resides at

NASIR MCMILLAN

2401 Davidson Avenue

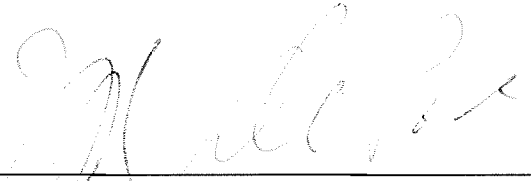
Bronx, New York 10468

Defendants.
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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York) and, in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 30, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**COLIN HIGGINS DET. OF 52 DET. SQUAD
SHIELD #1688, TAX ID #936767**

3016 Webster Avenue
Bronx, New York 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

-----X
NASIR MCMILLAN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, COLIN HIGGINS DET. OF
52 DET. SQUAD, SHIELD #1688, TAX ID #936767,
OTHER NEW YORK CITY POLICE OFFICERS ON
ARREST #B17628485 WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V,
AS IT PERTAINS TO THE ARREST OF JUNE 1, 2017
FOR AN INCIDENT THAT ALLEGEDLY OCCURRED
ON MAY 31, 2017 AND NO OTHER,

Defendants.

-----X

NASIR MCMILLAN, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff NASIR MCMILLAN was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 3rd day of August, 2017 and within ninety (90) days after some or all of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the

Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **COLIN HIGGINS DET. OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17628485 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about June 1, 2017, at approximately 12:30 A.M., in the vicinity of the inside of St. Barnabas Hospital, County of Bronx, State of New York for an incident that allegedly occurred on May 31, 2017 at approximately 10:00 P.M., in the vicinity of the inside of 2344 Davidson Avenue, County of Bronx,

State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **NASIR MCMILLAN**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about June 1, 2017, at approximately 12:30 A.M., in the vicinity of the inside of St. Barnabas Hospital, County of Bronx, State of New York, for an incident that allegedly occurred on May 31, 2017 at approximately 10:00 P.M. in the vicinity of the inside of 2344 Davidson Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **NASIR MCMILLAN** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about June 1, 2017, at approximately 12:30 A.M., in the vicinity of the inside of St. Barnabas Hospital, County of Bronx, State of New York, for an incident that allegedly occurred on May 31, 2017 at approximately 10:00 P.M. in the vicinity of the inside of 2344 Davidson Avenue, County of Bronx, State of New York, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station and/or a Correctional Facility in the County of Bronx and there charged him with the crimes on Docket No. 2017BX022528. The Plaintiff was thereafter held in custody over the course of seven (7) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.

13. On or about June 1, 2017, at approximately 12:30 A.M., in the vicinity of the inside of St. Barnabas Hospital, County of Bronx, State of New York, for an incident that allegedly occurred on May 31, 2017 at approximately 10:00 P.M. in the vicinity of the inside of 2344 Davidson Avenue, County of Bronx, State of New York, the Defendants jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station and/or a Correctional Facility in the County of Bronx and there charged him with the crimes on Docket No. 2017BX022528. The Plaintiff was thereafter held in custody over the course of seven (7) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about June 1, 2017 and from that time until the dismissal of charges on or about July 3, 2017, which was a favorable termination for the accused by a Grand Jury of Bronx County, Defendants **THE CITY OF NEW YORK, COLIN HIGGINS DET. OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767, OTHER NEW YORK CITY POLICE**

OFFICERS ON ARREST #B17628485 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V, deliberately and maliciously prosecuted Plaintiff NASIR MCMILLAN, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2017BX022528 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **COLIN HIGGINS DET. OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17628485 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff **NASIR MCMILLAN** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about June 1, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **NASIR MCMILLAN**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had

multiple batteries committed against him, without the Defendants possessing probable cause to do so. In this instant case, Plaintiff was in the vicinity of the inside of 2344 Davidson Avenue when an altercation between some people arose and Plaintiff was caught in the middle of shots being fired. The Plaintiff was shot four times and he proceeded to go around the corner where there was fire department/ ambulance center. Once he was placed in the ambulance, he was given oxygen and that's when officers arrived and started questioning him and arrested him. The Plaintiff then went St. Barnabas Hospital to treat his gunshot wounds. The Plaintiff was falsely arrested and seized by COLIN HIGGINS DET. OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767 COLIN HIGGINS DET. OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767, the officer who signed the criminal court complaint against the Plaintiff. The named officer and/or otherwise along with those named as "JOHN/JANE DOE I-V" were involved in the investigation that led to the arrest of the Plaintiff. The Plaintiff was held in custody for approximately seven (7) days and due to the lack of probable cause, malice can be inferred. Plaintiff was sent to Rikers Island. Plaintiff was subjected to multiple strip searches and/or cavity inspections while in custody. Plaintiff had a pump he uses for his asthma and the entire time he was in custody he wasn't able to use it as he was rear-handcuffed. Also the handcuffs were placed on so tight that Plaintiffs wrists turned red.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of his liberty.
 - i. Freedom from being illegally strip-searched with a cavity inspection on multiple occasions.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.

29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest. Further, a person who has acute asthma cannot be denied prompt access to his asthma pump.
31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.

3. A police/corrections inmate cannot be denied prompt access to his asthma pump especially when he has acute asthma.
 4. An individual who sustains physical injury at the hands of the police and/or another prior to or during the arrest process should receive prompt medical attention.
31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff and to commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

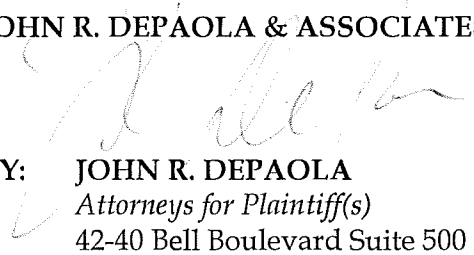
32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "31" as it set forth at length herein.
33. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
May 30, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: **JOHN R. DEPAOLA**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

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NASIR MCMILLAN,

Plaintiff,

-against-

VERIFICATION

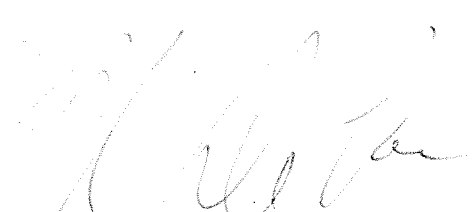
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2017 FOR AN INCIDENT THAT ALLEGEDLY
OCCURRED ON MAY 31, 2017 AND NO OTHER,

Defendants.
-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 30, 2018



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NASIR MCMILLAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, COLIN HIGGINS DET. OF 52 DET. SQUAD, SHIELD #1688, TAX ID #936767, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17628485 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-V, AS IT PERTAINS TO THE ARREST OF JUNE 1, 2017 FOR AN INCIDENT THAT ALLEGEDLY OCCURRED ON MAY 31, 2017 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for